

2015 P L C (C.S.) 501

[Lahore High Court]

Before Abid Aziz Sheikh, J

MUNEER AHMAD and 2 others

Versus

ASSISTANT CHIEF HUMAN RESOURCE and 3 others

Writ Petition No.24624 of 2013, heard on 27th October, 2014.

(a) Constitution of Pakistan---

---Art.199---General Clauses Act (X of 1897), S.24-A---Civil service---Dismissal of daily wage employees---Reinstatement---Natural justice, principles of---Applicability---Right of hearing and right to be confronted with allegations---Scope---Petitioners were dismissed as daily wage employees of the Civil Aviation Authority ("Authority"), and sought implementation of order of High Court in their previously filed Constitutional petition whereby respondent Authority was ordered to consider case of petitioners for reinstatement after giving opportunity of hearing to the petitioners and recording a well reasoned order---Contention of petitioners was that said right to hearing was not afforded to the petitioners as per the order of the High Court---Held, that order of the High Court did not require respondent Authority to reinstate the petitioners but it required the Authority to consider their case after affording opportunity of hearing; however, neither any statement of allegations was furnished to the petitioners nor they were given adequate time and opportunity to rebut allegations by filing of written statements or producing oral evidence---Record of and complaints against, the petitioners were neither mentioned in the impugned order nor there was any discussion of veracity of such complaints---No inquiry was conducted before passing of impugned order and no statement of witnesses against petitioners was recorded and no opportunity for cross examination of any witnesses against petitioners was given to the petitioners---Although petitioners were given notice for personal hearing and were required by the Authority to sign an "undertaking" that hearing was afforded to them, but where dismissal of service was result of serious allegations of corruption; principles of natural justice must be followed not merely as a formality but as a well meaning and effective requirement of law, which included confronting the parties with statements of allegations, opportunity to rebut documents and charges against them through written and oral defence as well as cross-examination witnesses and only thereafter, a well reasoned and speaking order must be passed as mandated in S.24A of the General Clauses Act, 1897---Requirements of natural justice had not been followed in the present case, and impugned order were set aside and matter was remanded to the Authority for decision afresh after fulfilling mandatory requirements of natural justice---Constitutional petition was allowed, accordingly.

Ikram Bari and 524 others v. National Bank of Pakistan through President and another
2005 SCMR 100 ref.

(b) Natural justice, principles of---

---Principles of natural justice must be followed not merely as a formality but as a well meaning and effective requirement of law.

Syed Muhammad Aslam Rizvi and Zia-ud-Din for Petitioners.

Muhammad Usman Arif for Respondents.

Date of hearing: 27th October, 2014.

JUDGMENT

ABID AZIZ SHEIKH. J.--- Through this constitutional petition, the petitioners are seeking direction against the respondents to implement the order dated 17-4-2013 passed by this Court in Writ Petition No.6283 of 2010 in its letter and spirit and the impugned letters dated 15-8-2013 along with proceedings thereof be set aside.

2. Brief facts are that petitioners Nos.1 to 3 who were working with Civil Aviation Authority (CAA) as daily wagers employees were de-hired by CAA on 2-8-2007, 16-11-2007 and 19-3-2005 respectively. The petitioners being aggrieved filed Writ Petition No.6283 of 2010 which was disposed of on 17-4-2013 with the direction to the respondents to consider the case of the petitioners for re-instatement strictly in accordance with law, record and through reasoned order after giving hearing to the petitioners. The respondent vide impugned orders dated 15-8-2013 upheld the de-hiring orders of the petitioners, hence this constitutional petition.

3. Learned counsel for the petitioners argued that the impugned orders dated 15-8-2013 is clear violation of order passed by this Court dated 17-4-2013 in Writ Petition No.6283 of 2010 as petitioners were neither confronted with allegations of corruption, undisciplined attitude and poor performance nor they were given fair opportunity to defend themselves. Adds that no material is discussed in impugned order to show that allegations against the petitioners were established or proved. Further argued that issue regarding regularization of service of petitioners in view of the law laid down by august Supreme Court of Pakistan was not discussed at all in the impugned letters, therefore, the same are liable to be set aside.

4. Conversely, learned counsel for the respondents argued that in compliance of this Court order dated 17-4-2013, the petitioners were given personal hearing and were also confronted with the allegations but they could not rebut the same, hence, in the light of available record, the de-hiring orders were upheld. Adds that as the petitioners were de-hired due to corruption, undisciplined attitude and poor performance while working as daily wagers, therefore, services of the petitioners could not be regularized in the light of august Supreme Court of Pakistan judgment Ikram Bari and 524 others v. National Bank of Pakistan through President and another (2005 SCMR 100). Further submits that petitioners being daily wagers falls within the definition of workman, therefore, they have an adequate remedy before the Labour Court against the impugned letters/orders.

5. I have heard the arguments of learned counsel for the parties and perused the record.

6. There is no dispute that petitioners Nos.1 to 3 who were working as daily wage employees were de-hired through verbal order on 2-8-2007, 16-11-2007 and 19-3-2005 respectively by the respondents. The petitioners beside being aggrieved of aforesaid de-hiring verbal orders also sought regularization of their services through Writ Petition No.6283 of 2010 which was disposed of on 17-4-2013 with the following observation:---

"Accordingly, the respondents shall consider the case of the petitioner No.2 for re-instatement strictly in accordance with law and according to record after granting him hearing and decide the matter for reasons to be recorded in writing".

In concluding para of aforesaid order, this Court also directed that same relief be also granted to the petitioners Nos.1 and 3 as has been allowed to petitioner No.2.

7. In terms of aforesaid order dated 17-4-2013 passed by this Court, no doubt, the respondents were not required to re-instate or regularize the petitioners automatically, however, they were required to consider the case of the petitioners for re-instatement strictly in accordance with law after giving hearing to them and through a reasoned order. The impugned Letters orders dated 15-8-2013, shows that though de-hiring verbal orders of the petitioners were upheld due to allegations of corruption, undisciplined attitude and poor performance against the petitioners, however, neither any statement of allegations was furnished to them nor they were given adequate time and opportunity to rebut those allegations by filing their written defence or producing oral evidence. Further the details of complaints and record available against the petitioners is neither mentioned in the impugned letters/orders nor there is any discussion on the veracity of these complaints and documents to support serious allegations and charges against the petitioners. Admittedly, no inquiry was conducted before passing the impugned letters/orders dated 15-8-2013, no statement of witness against the petitioners were recorded, no opportunity was given to petitioners to cross-examine witnesses if any available against the petitioners and they were also not given chance to produce their own witnesses in defense.

8. No doubt the petitioners were given notice dated 16-7-2013, for personal hearing on 20-7-2013 and they were also required to sign "undertaking" that hearing was afforded to them but where de-hiring is result of serious allegations of corruption, undisciplined attitude and poor performance, the principle of natural justice must be followed not merely as a formality but as a well-meaning and effective requirement of law, which includes confronting the parties with statement of allegations, opportunity to rebut the documents and charges against them through written and oral defence and cross-examination witness if any available against them and after aforesaid opportunities passing of a speaking and well-reasoned order as mandated under section 24-A of the General Clauses Act, 1897. As none of the aforesaid requirements of natural justice have been followed by the respondents, it cannot be said that order of this Court dated 17-4-2013 was complied with and the impugned letters/orders dated 15-8-2013 are speaking and well-reasoned. The impugned orders/letters being violative of rule of natural justice and order dated 17-4-2013 passed by this Court, the Constitutional Petition is the only adequate and efficacious remedy available to the petitioners.

9. For reason discuss above, the impugned letters/orders dated 15-8-2013 being without lawful authority are set aside. Consequently, the matter is remitted back to respondents for decision afresh after fulfilling the mandatory requirements of rule of natural justice. This petition is allowed in the terms stipulate above.

KMZ/M-4/L Petition allowed.